

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	22-07-2026 14:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	22-07-2026 14:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Power
विभाग का नाम / Department Name	Sjvn Limited
संगठन का नाम / Organisation Name	Sjvn Limited
कार्यालय का नाम / Office Name	Njhps Sjvn Jhakri Hp 172201
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : Buyer Email id: sjvn.swarajsingh@sjvn.nic.in
कुल मात्रा / Total Quantity	13
वस्तु श्रेणी / Item Category	Latest Technology based control cubicle for cooling water system with HMI & accessories as per TS , 75 KW, 415V, 3 Phase induction motors As Per TS And SOW Enclosed , 37 KW, 415V, 3 Phase induction motors As Per TS And SOW Enclosed , Mandatory spares As Per detailed in TS And SOW Enclosed , Installation and Commissioning of Latest Technology based control cubicle As Per SOW Enclosed
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Installation and Commissioning of Latest Technology based control cubicle equipped with PLC, Soft starters with HMI and other associated Equipments and accessories
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Submersible Pump Starters (Motor starter controls) - Programmable Logic Controller (PLC) - Line Operated Three Phase AC Motors (Induction Motor) ISI Marked To IS 12615
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) / Minimum Average Annual Turnover of the bidder (For 3 Years)	32 Lakh (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Latest Technology based control cubicle for cooling water system with HMI & accessories as per TS
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	12500000
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	250000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	31

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

DGM

Njhps Sjn Jhakri Hp 172201, SJVN Limited, SJVN Limited, Ministry of Power
(F And A Deptt. Njhps, Sjn Ltd)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

3. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :

Details of work executed by the bidders as per Pre qualification requirement of the bid - [1782369718.xlsx](#)

Latest Technology Based Control Cubicle For Cooling Water System With HMI & Accessories As Per TS (2 pieces)

(Minimum 60% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sachin Kumar	172201,O AND M STORES NJHPS SJVN JHAKRI	2	120

75 KW, 415V, 3 Phase Induction Motors As Per TS And SOW Enclosed (4 pieces)**(Minimum 60% Local Content required for qualifying as Class 1 Local Supplier)****तकनीकी विशिष्टियाँ /Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sachin Kumar	172201,O AND M STORES NJHPS SJVN JHAKRI	4	120

37 KW, 415V, 3 Phase Induction Motors As Per TS And SOW Enclosed (4 pieces)**(Minimum 60% Local Content required for qualifying as Class 1 Local Supplier)****तकनीकी विशिष्टियाँ /Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sachin Kumar	172201,O AND M STORES NJHPS SJVN JHAKRI	4	120

Mandatory Spares As Per Detailed In TS And SOW Enclosed (1 Lot)

(Minimum 60% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sachin Kumar	172201,O AND M STORES NJHPS SJVN JHAKRI	1	120

Installation And Commissioning Of Latest Technology Based Control Cubicle As Per SOW Enclosed (2 pieces)

(Minimum 60% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sachin Kumar	172201,O AND M STORES NJHPS SJVN JHAKRI	2	135

Buyer added Bid Specific Additional Scope of Work

क्र.सं./S.No.	Document Title	Description	रिवर्स प्रभार के अनुसार जीएसटी/Applicable i.r.o. Items
1	Technical Specification and scope of work annexure-A of the bid View	Technical Specification and scope of work annexure-A of the bid	Latest Technology Based Control Cubicle For Cooling Water System With HMI & Accessories As Per TS(2),75 KW, 415V, 3 Phase Induction Motors As Per TS And SOW Enclosed(4),37 KW, 415V, 3 Phase Induction Motors As Per TS And SOW Enclosed(4),Mandatory Spares As Per Detailed In TS And SOW Enclosed(1),Installation And Commissioning Of Latest Technology Based Control Cubicle As Per SOW Enclosed(2)
2	PRE-QUALIFICATION CRITERIA AND OTHER ANNEXURES OF THE BID View	PRE-QUALIFICATION CRITERIA AND OTHER ANNEXURES OF THE BID	Latest Technology Based Control Cubicle For Cooling Water System With HMI & Accessories As Per TS(2),75 KW, 415V, 3 Phase Induction Motors As Per TS And SOW Enclosed(4),37 KW, 415V, 3 Phase Induction Motors As Per TS And SOW Enclosed(4),Mandatory Spares As Per Detailed In TS And SOW Enclosed(1),Installation And Commissioning Of Latest Technology Based Control Cubicle As Per SOW Enclosed(2)

The uploaded document only contains Buyer specific Additional Scope of Work and / or Drawings for the bid items added with due approval of Buyer's competent authority. Buyer has certified that these additional scope and drawings are generalized and would not lead to any restrictive bidding.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Scope of Supply

Scope of supply (Bid price to include all cost components) : Supply Installation Testing Commissioning of Goods and Training of operators and providing Statutory Clearances required (if any)

2. Generic

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

3. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- Copy of PAN Card.
- Copy of GSTIN.
- Copy of Cancelled Cheque.
- Copy of EFT Mandate duly certified by Bank.

4. Generic

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

5. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

ADDITIONAL TERMS & CONDITIONS

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A. **INSTRUCTIONS TO BIDDERS (ITB)**

The bids are invited through GeM Portal, so please read the instructions carefully and upload/filled the bids as per requirement of bid documents.

1.0 General Instructions

The SJVN Limited, hereinafter called "SJVN Ltd." / "Owner" is a Joint Venture of Govt. of India and Govt. of Himachal Pradesh having its registered office at Corporate Head Quarter, Shanan, Shimla, Himachal Pradesh Pin No.-171006, have their Nathpa Jhakri Hydroelectric Power Plant with a capacity of 6x250 MW at Nathpa (Distt. Kinnaur) and Jhakri (Distt. Shimla) in the State of Himachal Pradesh, India.

2.0 Plant Information

The 1500 MW Nathpa Jhakri Hydroelectric Power Plant is located between Nathpa (Distt. Kinnaur) and Jhakri (Distt. Shimla) in the State of Himachal Pradesh.

3.0 Communication and Transport Limitation

The Plant Site is located in the interior of Himachal Pradesh. The dam is located on the Sutlej River near village Nathpa in District Kinnaur. The underground power house is located near village Jhakri in District Shimla. Shimla, the capital of the State of Himachal Pradesh is enroute about 150Km South-West from Jhakri. The distance by road from Jhakri to Nathpa upstream is about 45 Km (Approx.).

The rail head (broad gauge) is at Kalka (NR). Kalka is about 285 Km (Approx.) from Nathpa.

Approximate Distance from Kalka	To Mumbai	To Kolkata	To Chennai
(i) By Rail	1906	1809	2558
(ii) By Road	1753	1791	2482

The distance from Kalka to Delhi by road is 285 Km (approx.). From the Kalka rail head, the Project is approachable by the following roads/routes:-

(i)	Kalka - Dharampur - Solan - Shimla - Narkanda - Rampur - Jhakri(NH- 05).	:	235 Km (Approx.)
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(ii)	Kalka - Dharampur - Solan - Shimla - Dhalli - Basantpur - Rampur - Jhakri.	:	257 Km (Approx.)
(iii)	Kalka - Dharampur - Sabathu - Arki - Shalaghat - Dhalmi - Basantpur - Rampur - Jhakri.	:	342 Km (Approx.)

Transport Limitation

The transport limitation by road from Kalka to the Plant Site at Jhakri would be the governing factor in respect of the permissible package size and weight. Bidder should consider all factors as can be envisaged for transportation of equipment to avoid and overcome the hindrances/ limitations on existing road on account of weather conditions and any other reasons without affecting the schedule.

4.0 Minimum Qualifying Requirement: As per PQR (i.e. Pre-Qualification Criteria / Requirement) annexure-I enclosed.

5.0 SCOPE OF PROPOSAL:

5.1 The scope of proposal includes “Design, Engineering, Manufacturing, Supply, Installation & Commissioning of Cooling Water System Control Cubicles with Soft Starters, PLC & HMI, Associated Equipment and Motors for Unit-3 & Unit-4 of NJHPS Jhakri” [Detailed complete scope of tender as per Technical Specification, Scope of work, Manufacturer QAP & Site/Field QAP Annexure-A uploaded along with the bid and same shall be the Integral Part of the Contract). **The BOQ of the bid are as under:-**

Sr. No	Item Description	Quantity	Unit
A	Supply Part		
1	Latest Technology based control cubicle for cooling water system with HMI and other associated accessories {Detail as per attached tech. spec. & scope of work Annexure-A enclosed}	2	Set
2	75 KW, 415V, 3 Phase induction motors as per given dimensions and designed. (IE4 efficiency class). {Detail as per attached tech. spec. & scope of work Annexure-A enclosed}	4	No
3	37 KW, 415V, 3 Phase induction motors as per given dimensions and designed. (IE4 efficiency class). {Detail as per attached tech. spec. & scope of work Annexure-A enclosed}	4	No
4	Mandatory spares as per detailed in TS/ Scope of work. {Detail as per attached tech. spec. & scope of work Annexure-A enclosed}	1	Lot

B	Service Part		
1	Installation and Commissioning of Latest Technology based control cubicle equipped with PLC, Soft starters with HMI and other associated Equipments and accessories (All 04 motors of primary and secondary CW system). {Detail as per attached tech. spec. & scope of work}	2	Set

5.2 The rates for above shall be quoted on a lump sum basis and the price breakup for each item of Main Supply & Mandatory Spares shall be submitted by bidder to EIC during the detail engineering after award of contract.

5.3 MANDATORY SITE VISIT: - It is MANDATORY for all the bidders who want to participate in this tender to visit the site to make acquaintance with the scope of work, to get aware themselves with actual site conditions **before uploading/submitting their bid**. The cost of visiting the site shall be at bidder's own expenses. **The bidder must upload the certificate issued by EIC that the bidder has visited the site before the uploading/submitting the bid. The bidder who will not submit/upload the certificate issued by EIC along with their bid, then the bid will be rejected.** The bidder(s) are requested to contact the followings regarding the co-ordination of site visit:-

- a) Sh. Bal Krishan Thakur, Manager (PHEM), NJHPS, Jhakri. Mobile no. 9418054101, E-mail ID: balkrishan.thakur@sjvn.nic.in.
- b) Sh. Basant Lal Kohli, DGM(PHEM), NJHPS, Jhakri. Mobile no. 9418077123, E-mail ID: basant.lal@sjvn.nic.in.
- c) Sh. Soni Kumar, General Manager(PHEM) NJHPS, SJVN, Jhakri, Mobile no. 94184-50875, E-mail ID: soni.kumar@sjvn.nic.in

5.4 Successful bidder shall submit the **Design & Drawings of Latest Cooling Water Control Cubicle** and Motors for two Generating Units of NJHPS for the review & approval of SJVN Ltd **within 30 Days from the date of issue of LOA**. The EIC shall provide approval or comments within seven (07) working days from the date of submission.

5.5 The successful bidder shall be responsible for verifying the technical details mentioned in the technical data sheet prior to execution.

5.6 The bidder is required to specify the make and model and also to submit **authentic technical catalogues and datasheets** of Offered products for key components, including **Soft Starter, PLC, MPCB, HMI, etc., along with the bid**.

5.7 The scope of work also includes the supply of **original License (Non-expired) copy of PLC, soft starter and HMI** etc. without any extra cost to SJVN.

5.8 The Scope of Works shall also include supply of **as-built drawing 02 Sets of Drawings & 02 Sets of O&M Manual in hardcopy** as well as in soft copy for the reference of SJVN Ltd.

- 5.9** The Scope of Work shall also include **Onsite Training** to SJVN Engineers regarding O&M of latest system & associated equipment's.
- 5.10** Any kind of fabrication work required for foundation of motor and civil work required at site for fixing motors shall be in the scope of bidder. Bidder must match the axis of alignment of motor pump unit and any kind of additional coupling if required shall be supplied by the bidder at no additional cost to SJVN.
- 5.11** The scope of work shall include removal of the existing motors and the DOL-type motor control panel of size **800 x 600 x 2000 mm (W x D x H)**, deployment of the required manpower (engineers, technicians, and helpers), and complete erection, commissioning, and successful operation of the system up to the stage of final acceptance, to the satisfaction of **SJVN**.
- 5.12** Any items/ Equipments that may not be specifically mentioned in technical specifications but are essential for the successful installation, testing, and commissioning of the PLC & Soft-Starter Based Water Control Cubicle and its associated equipment at NJHPS, Jhakri, shall be deemed to be included in the contract or's scope. The contractor shall be responsible for supplying, installing, and integrating such items as required to ensure the complete functionality and operational readiness of the system, without any additional financial implications to SJVN Ltd.
- 5.13** Further, detailed complete scope of tender as per Technical Specification, Scope of work, Manufacturer QAP & Site/Field QAP Annexure-A uploaded along with the bid and same shall be the Integral Part of the Contract
- 5.14** The Bid shall be evaluated on **Total Value wise L-1 basis** for the scope of supply & not item wise L-1 basis.
- 5.15** **The material is to transport through "Registered Common Carrier" only (Registered Common Carrier mean the carrier registered with a State Transport Authority or a Regional Transport Authority).**

6.0 QUALITY ASSURANCE PLAN

- 6.1** The material is to be manufactured & supplied as per the relevant standards, technical specification, drawing and MQAP. The successful bidder is required to review and endorse the **Manufacturing Quality Assurance Plans and Site/Field Quality Assurance Plans** enclosed along with the bid. Any minor changes, if necessary, will be mutually discussed and agreed upon with the Successful bidder during the post-award stage. These quality plans outline the various tests and inspections to be conducted in accordance with the specified requirements, applicable standards, and best quality practices.
- 6.2** **Pre- Dispatch Inspection or Factory Acceptance Test (FAT)** -. The Cooling Water Control cubicle shall be assembled at the Manufacturer's/Supplier's facility. The Pre-Dispatch inspection or Factory Acceptance Test (FAT) of the material shall be carried out by SJVN at manufacturer's/ supplier's work before the dispatch of the material. The panel will be tested according to the control logic/ scheme outlined under the Scope of Work and the Manufacturer Quality Assurance Plan. The bidder will submit such inspection call 15 days in advance to SJVN (EIC/Consignee).

6.3 The MDCC shall be issued accordingly by EIC within 07 days after completion of PDI & intimation of the readiness of the material for dispatch.

6.4 Final inspection of material shall be carried out by the SJVN/EIC or their authorized representative at O&M, Store, NJHPS, SJVN Ltd. Jhakri.

7.0 Bid Security / Earnest Money deposit (EMD) & Bid Security Declaration Form.

7.1 The bidder shall furnish, a bid security/ earnest money as part of the bid amounting for **₹2,50,000- (₹ Two Lakh Fifty Thousand Only).**

7.2 The bidder must also submit Bid Security Declaration along with their bid as per format specified in Annexure-II enclosed.

7.3 EARNEST MONEY DEPOSIT/BID SECURITY EXEMPTION:- The bidder seeking Earnest Money Deposit /Bid Security exemption, must submit the valid supporting document for the relevant category as per GeM GTC along with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from submission of Earnest Money Deposit/Bid Security. Traders are excluded from the purview of this Policy. **If the MSE/NSIC/Startup India certificate does not contain the item(s)/Services as listed in our NIQ/NIT and no EMD is found submitted, then SJVN may ask the bidder to submit the EMD and the same should reach within ten (10) days from the date of SJVN's clarification sought through GeM, otherwise the bid shall be considered as non-responsive and price bid of such firms shall not be opened.**

Remarks: The exemption of the submission of the EMD shall be given to the MSE firm only after verification of their MSE registration on MSME Databank {i.e. on website udyamregistration.gov.in} and Startup firm after verification of their registration on DPIIT website [i.e <https://www.startupindia.gov.in>]

7.4 The Bid Security/EMD shall be submitted/deposited ONLINE in SJVN account through NEFT/RTGS as per detail given below:

Beneficiary Name:	SJVN LTD O AND M ACCOUNT, Payable at SBI Jhakri
Account No:	11543142129
IFSC Code:	SBIN0006988
Bank Branch:	SBI Jhakri

Caution: Please ensure that you need to mention the correct beneficiary account number and IFSC code as mentioned above while making payment via RTGS / NEFT. In the event of funds remitted to wrong beneficiary account number, SJVN Limited or its Bank or its service provider would not be responsible for the same.

7.5 The Bid Security/EMD through electronic fund transfer is to be credited in SJVN account before bid closing date as specified in the bidding document. The bidder shall also upload the supporting documents of EMD with transaction ref. no. along with their bid.

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7.6 EMD /Bid security can also be submitted through FDR/TDR/BG(as per SJVN standard format).

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7.7 **FDR/TDR/BG:** Please note that EMD (Earnest Money Deposit) / Bid Security in the form of **FDR/TDR {Pledged in favour of the NJHPS, SJVN Ltd. Jhakri}/ BG { As per GeM standard format}** is also acceptable. In case EMD is submitted by way of Bank Guarantee; while issuing the physical BGs, the Supplier's/contractor's Bank shall also send electronic message through secure **SFMS** to Employer's/Buyer's Beneficiary Bank whose details are provided in **ATC ITB clause Sr. no 7.0(7.4) above**).

The bid security shall remain valid for a period of 45 days beyond the original validity period and beyond any extension subsequently requested. The FDR/TDR/BG in original/physical form should reach preferably on or before bid closing date at the address given below:

**Head of Department
(Procurement & Contract Department),
NJHPS, SJVN Ltd. Jhakri,
Distt. Shimla (H.P.)-172201**

Remarks: - The EMD submitted in the form of DDs, local Cheque/ outstations Cheque will not be considered. If any bidders submitted EMD in the form of DDs, local Cheque/ outstations Cheque then SJVN may ask the bidder to submit the EMD as per clause no. 7.4 & 7.7 as above and the same should reach within ten (10) days from the date of SJVN's clarification through GeM, otherwise the bid shall be considered as non-responsive and price bid of such firms shall not be opened.

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7.8 The bid security/ EMD and bid security exemption certificates shall remain valid for a period of 45 days beyond the original bid validity period and any extension subsequently requested. If the Bid security/ Exemption certificate is not found valid for 45 days beyond the original bid validity period and any extension subsequently requested, SJVN may ask the bidder to extend the validity of the Bid security/ Exemption certificate for a period up to 45 days beyond the original validity period or else submit the EMD/ Bid security. Such EMD/ bid security shall be submitted as per clause no. 7.4 & 7.7 as above and the same should reach within ten (10) days from the date of SJVN's clarification through GeM.

7.9 The bid securities of unsuccessful bidders will be returned as promptly as possible, but not later than thirty (30) days after the expiration of the bid validity period or after the opening of price bid whichever is earlier.

7.10 The bid security of the successful bidder will be returned when the bidder has furnished the required performance security.

7.11 No interest shall be payable by the Owner on the above Bid security.

7.12 The bid security may be forfeited

(a) if the Bidder withdraws its bid during the period of bid validity specified by the Bidder in the Bid Form;

(b) if the Bidder does not accept the correction of its Bid Price;

- (c) if the Bidder does not withdraw any deviations listed in bid at the cost of withdrawal indicated by him;
- (d) if the Bidder refuses to withdraw, without any cost to the Owner, any deviation not listed in bid but found elsewhere in the bid; or
- (e) in the case of a successful Bidder, if the Bidder fails within the specified time limit;
 - (i) To accept the Letter of Award or
 - (ii) To furnish the required performance security.
 - (iii) To start activities according to Work Completion Schedule.

8.0 Bid Prices

- ▶ Unless otherwise specified in the Technical Specifications, Bidders shall quote for the entire supply on a "single responsibility" basis such that the total bid price covers all the supplier's obligations mentioned in or to be reasonably inferred from the bidding documents.
- ▶ Bidders are required to quote the price for the commercial, contractual and technical obligations outlined in the bidding documents.
- ▶ Bidders shall give the required details and breakup of their prices as per Schedules specified.
- ▶ The Prices quoted by the Bidder shall be **FIRM** during the performance of the contract and not subject to variation on any account. A bid submitted with an adjustable price quotation will be treated as non-responsive and rejected.

9.0 Bid Currencies

Bidders shall quote all prices in Indian Rupees only.

10.0 Bid Submission: The bid is called under two part system as under:-

A. Price Bid Part

- a. Bidder shall be required to offer their rates & prices for entire scope as per detailed Technical specification and scope of work uploaded along with the bid. **FIRM prices for FOR, O&M Stores Jhakri (HP, INDIA) basis is to be quoted inclusive of the charges towards P&F, Insurance & Freight charges including GST.**
- b. GST shall be applicable as per GST rules, thus GST has to be quoted accordingly by the bidder i

n the bid.

- c. Any other deduction like TDS etc as applicable under this contract as per the Govt. laws shall be made from the payment of the contractor and statement for the same shall be provided by SJVN for the same
- d. The taxes & duties shall be paid as per applicable rate at the time of delivery of the material & services. Any increase in taxes & duties /new introduction of new taxes & duties/ levy by the Govt. shall be paid by SJVN Ltd. provided that such increase in taxes & duties /new introduction of new taxes & duties/ levy by the Govt. is made with in schedule completion/delivery period as per LOA, otherwise same shall be paid by the bidders. Accordingly the taxes & duties shall be quoted by bidder.

Note: No material/information relating to Price Bid shall be included in the Technical Bid. A technical bid containing any information related to price bid shall be declared non-responsive.

B. Techno-Commercial bid part consist of followings:

- (i) **Pre bid site visit certificate issued by EIC as per Sr. no 5.3 above.**
- (ii) Documents as per Pre-Qualification Criteria (Annexure-I) for Proven Experience, Annual Financial Turnover, Financial Experience etc.
- (iii) The authentic technical catalogues and datasheets of offered product for key components, including **Soft Starter, PLC, MPCB, HMI, etc.**
- (iv) EMD & Bid Security Declaration form as per **Annexure-II** enclosed.
- (v) Copy of GST Registration No.
- (vi) Copy of PAN no.
- (vii) Pre- Contract Integrity Pact (**Annexure-III**) as per clause no. **18.0 below**
- (viii) Self-certification on company letter head by authorized person, regarding local content **Annexure-IV** as per clause No **19.0 below**.
- (ix) Undertaking **annexure-V** as per clause No **20.0 below**.
- (x) TReDs registration details or undertaking as per clause ref. no **21.0 below (applicable only for MSE vendors)**.
- (xi) Undertaking as per **annexure-VI**.
- (xii) All documents as required as per Technical Specifications, soft/ scanned copies of the Technical Data Sheet/ Technical Catalogues/ Technical Details/ Drawing etc. or any other information are to be uploaded along with the bid.
- (xiii) Schedule-1, "Schedule for Minimum Qualifying Requirements.

11.0 WITHDRAWAL OF BIDS

No bid may be withdrawn in the interval between the bid submission deadline and the expiration of the bid validity period specified in Bid documents. Withdrawal of a bid during this interval may result in the Bidder's forfeiture of its bid security / EMD/ necessary action may be taken as per bid security declaration submitted by the firm along with their bid.

12.0 BID OPENING AND EVALUATION

- ▶ The Owner will open all bids electronically, on the date and at the place specified in the GEM Bid. In the event of the specified date for the opening of bids being declared a holiday for the Owner or network problem, the bids will be opened at the appointed time on the next working day.
- ▶ **Bids will be evaluated for the Overall L-1 basis FOR O&M, Store, NJHPS, SJVN Ltd. Jhakri basis including all taxes & duties for entire scope of work and technical specification uploaded along with the bid.**

13.0 CLARIFICATION OF BIDS

During bid evaluation, the Owner may, at its discretion, ask the Bidder for a clarification of its bid. The request for clarification and the response shall be in writing, and no change in the price or substance of the bid shall be sought, offered or permitted.

14.0 INFLUENCING THE OWNER

- ▶ No Bidder shall contact the Owner on any matter relating to its bid, from the time of the opening of bids to the time the contract is awarded.
- ▶ **Any effort by a Bidder to influence the Owner in the Owner's bid evaluation, bid comparison or contract award decisions may result in rejection of the Bidder's bid.**

15.0 AWARD OF CONTRACT

- ▶ The Owner will award the contract to the successful Bidder whose bid has been determined to be substantially responsive and to be the lowest evaluated bid on single responsibility basis for entire scope of work, further provided that the bidder is determined to be qualified to perform the contract satisfactorily.
- ▶ Bidders would be required to comply with all other requirements of the Bidding Documents.
- ▶ **Award will be placed for total quantity of BOQ on L1 basis for substantially responsive bid on single responsibility basis.**

16.0 OWNER'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY BIDS

The Owner reserves the right to accept or reject any bid, and to annul the bidding process and reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected Bidder or bidders or any obligation to inform the affected Bidder or bidders of the grounds for the Owner's action.

17.0 Corrupt or Fraudulent Practices

- A. It is expected from the bidders / Contractor and/or any of its personnel, or its agents, or its Sub-contractors, manufacturer, sub-consultants, services providers, suppliers and/or their employees that they will observe the high standard of ethics during the bidding process and execution of such Contracts.

For this purpose, the applicant shall sign the Integrity Pact as per clause no. 18.0 of ITB.

In pursuance to this policy:

- a) For the purpose of this provision, the terms set-forth below shall mean as under:

- (i) "corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in Contract execution.
- (ii) "fraudulent practice" means a misrepresentation or omission of facts in order to influence a procurement process or the execution of a contract to be detriment of the Employer, and includes collusive practice among Applicants (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Employer of the benefits of free and open competition.

- b) A Bid shall be rejected by the Employer if it is determined at any stage that respective bidders / Contractor and/or any of its personnel, or its agents, or its Sub-contractors, manufacturer, sub-consultants, services providers, suppliers and/or their employees has engaged in corrupt or fraudulent or collusive practices in competing for the Contract in question.

- c) The Employer will declare a bidder / contractor ineligible or may terminate the contract, either indefinitely or for a stated period of time, to be awarded a Contract if it at any time determines that the bidders / Contractor and/or any of its personnel, or its agents, or its Sub-contractors, manufacturer, sub-consultants, services providers, suppliers and/or their employees has engaged in corrupt or fraudulent or collusive practices in competing for or in executing the Contract in question.

18.0 Adoption of Integrity Pact[ANNEXURE-III Enclosed]:

To improve transparency and fairness in the tendering process the Employer is implementing Integrity Pact. Integrity Pact is deemed as part of the contract so that the prospective bidders are bound by its provisions.

The Integrity Pact, signed by all the prospective Bidders and the Employer, shall commit the persons/officials of both the parties, not to exercise any corrupt /fraudulent/collusive/coercive practices in the Tendering process and also during implementation of the Contract. Only those Bidders who have entered into Integrity Pact with the Employer shall be eligible to participate in the bidding process. Bidders signing Integrity Pact shall not approach the Courts while representing the matters to IEMs and he/she will await their decision in the matter.

Entering into Integrity Pact as per Performa (enclosed in ANNEXURE-III) is a basic qualifying requirement. In case of JV, each partner of JV shall sign Integrity Pact with the Employer. In case of sub-contracting, the Principal contractor shall be responsible for adoption of Integrity Pact by the sub-contractor.

To oversee the compliance of obligation under the Integrity Pact, a panel of Independent External Monitor(s) (IEMs) have been appointed by concerned authority. The Contact address of IEMs is as under: -

1. Sh. Devendra Verma , ISS (Retd.)
604, Tower-14, Purvanchal Royal City, Chi V,
Greater Noida, G.B. Nagar(UP)-201310
Email: verma.davendra@gmail.com
2. Sh. Prashanta Kumar Agrawal, IPS (Retd.)
House no. 762, Sector-17,

Faridabad (HR)- 121002
Email- agrawal.prashanta@gmail.com

3. Sh. Sanjay Kumar Srivastava, IAS (Retd.)
C-2 Flat No. 2475
Vasant Kunj, (Opposite DPS School) Vasant Kunj
New Delhi-110070
Email: - shrivastava.sk001@gmail.com

All pages of the Integrity pact to be signed between SJVN Ltd. and the bidders / contractors on plain papers at the time of submission of bid as per the approved format. The Integrity Pact shall be duly signed on behalf of the employer (SJVN Ltd.) is given in forms & procedure of these bid documents. Signed copy of the Integrity Pact is to be included in the bid document while issuing Tender Document / uploading the tender documents on the Portals. The integrity pact shall be downloaded, printed and signed by bidder on each page. The scanned copy of duly signed Integrity Pact shall be uploaded by the bidder along with the bid.

Further following may also be noted:-

IP is deemed as part of the contract so that the parties concerned are bound by its provisions.

Failure to sign the integrity pact by applicant shall be liable to outright rejection of application / bid.

The successful bidder (Contractor) shall submit duly executed Integrity Pact on Non-judicial Stamp Paper of Rs 100/- within 15 days from the date of issue of LOA

19.0 Preference for procurement of goods/Services/Works from Local Suppliers under Public Procurement (Preference to Make in India) Revision PPP-MII order 2017 dated 16/09/2020 & MOP order 28/07/2020, 16/11/2021 in respect of Hydro Power Sector and DPIIT order re.no.P-45021/2/2017-PP(BE-II)-Part(4)Vol.II dated 19/07/2024.

19.1 Local Supplier Categories: Reserve for Class-I local supplier only.

- i. Class-I Local Supplier- **Minimum Local Content = 60%.**

Definition of Local content: 'Local content' means the amount of value added in India which shall unless otherwise prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.

19.2 The bidder will submit following along with their bid:-

1. Country of origin of Material/ Equipment/Services/Works
2. The bidder will submit the percentage (%) of local content along with Self-certification regarding Local Content in line with PPP-MII order, if applicable to be submitted on company letterhead by authorize

d person { **As per format Annexure-IV enclosed** }.

19.3 In line with the revised PPP-MII order 2017 dated 16/09/2020, the bidder shall submit the self-certification, certifying that the item offered meets the Local Content and shall give details of the location(s) at which value addition is made, as prescribed in the PPP-MII Order 2017, on company letter head by the authorized person..

19.4 ***Self-declarations/ auditor's/ account's certificates submitted by the manufacturer/ supplier may be verified randomly by the committee constituted as per MOP order 20/07/2020. In case of false documents/misrepresentation of the facts requisite action against such manufacturer/supplier will be taken based on the recommendation of the Committee.***

20.0 RESTRICTIONS IMPOSED BY GOVT OF INDIA:

Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority specified in Annexure-I of Ministry of Finance, Government of India order no F. No. 6/18/2019-PPD dated 23.07.2020 and various amendment/clarification issued in this regard. The bidders for the purpose of compliance and its procedure for registration from Competent Authority etc. The bidder has to submit the undertaking as per **Annexure- V** regarding compliance of above-mentioned order. In case the undertaking given by the bidder whose tender has been accepted by the Employer is found false at the later stage, this would be a ground for immediate termination and further legal action shall be taken in accordance with law.

21.0 Mandatory Registration on TReDS portal for MSME Vendors:-

TReDS is an electronic platform for facilitating the financing / discounting of trade receivables of Micro, Small and Medium Enterprises (MSMEs) through multiple financiers. It addresses the issue of delayed payments to MSMEs. These receivables can be due from corporates and other buyers, including Government Departments and Public Sector Undertakings (PSUs). It is mandatory to all CPSEs to register themselves and ensure mandatory on boarding of MSE vendors on TReDS portal.

There are three TReDS platforms which are presently operational in India. Receivables Exchange of India Ltd (RXIL), M1xchange and Invoicemart. Currently SJVN Ltd. is transacting with M1xchange and Invoicemart TReDS platforms only. MSE vendors can avail this benefit by registering themselves with any of the exchanges providing e -discounting /electronic factoring services on TReDS platform and following the procedures defined therein.

Therefore, all MSEs Vendors in their own interest are hereby requested to register themselves on TReDs portal. **The contract shall be awarded to eligible MSE bidders only if they get themselves registered on TReDs portal.** Therefore, the bidders shall submit the TReDs registration details along with their bid or else can also submit an undertaking on their letterhead that “ **it is confirmed that our firm shall get registered on TReDs if found L-1 before placement of order**” along with their bid. The MSE bidders shall have to ensure registration on TReDs portal and submit documentary evidence before award of contract failing which contract shall not be awarded.

22.0 SUBMISSION OF DOCUMENTS BY POST:

The following documents in hard copy/original form sealed in envelop super scribed as **PPR- 2869(O&M)/2026[GEM/2026/B/7633305]** for “**Design, Engineering, Manufacturing, Supply, Installation & Commissioning of Cooling Water System Control Cubicles with Soft Starters, PLC & HMI, Associated Equipment and Motors for Unit-3 & Unit-4 of NJHPS Jhakri** ” are to be sent through post:-

- (i) Earnest Money Deposit (In original) if submitted in the form of **FDR/TDR/BG** as per **clause no. 7.0**

- ▶ These scanned copies of above documents should be uploaded on GEM Portal and is to be reach on or before closing date and time as per the GEM Bid.
- ▶ Any documents as asked or required are to be sent to the following address:-

**Head of Department,
Procurement and Contract Department,
NJHPS, SJVN Ltd., Jhakri,
Distt. Shimla (H.P.)-172201.
Phone No. 01782-275236.
Fax No. 01782-234049/ 275106.**

Remarks: The scanned copy (ies) of the document(s) asked as above are to be uploaded on GEM Portal and should reach in original/physical form at above address preferably on or before bid closing date as specified in the tender. However, the original document(s) in physical shall also be acceptable within ten(10) days after bid closing date, otherwise bid(s) shall not be entertained and such bid(s) shall be treated as late bid(s)/non-responsive bid(s). Also if the original document(s) in physical form are found to be at variance than the scanned copies submitted /uploaded earlier along with e-bids, the bid(s) will be treated as non-responsive.

23.0 BILL TRACKING SYSTEM:

Prior to the submission of the bills in physical form, supplier shall submit the bills in SJVN vendor bill tracking portal available in SJVN official website <https://www.sjvn.nic.in> under quick link section. Further, supplier may track the status of bills online through Vendor Bill tracking system. In order to use this system, a user manual for supplier is available under Vendor bill tracking system section. Supplier is required to enter the user ID, password and OTP (one-time password) for every log in. The user ID and password shall be obtained from the concerned department of SJVN Ltd. However, the OTP will be received to the supplier in the registered mobile number provided by supplier to the concerned department. Once the supplier has received its username and password from the concerned department, supplier shall follow the below mentioned steps:

- Once supplier received the user ID and password from the concerned department, the supplier can log in to vendor bill tracking system with the user ID, password and OTP.
- After Log in, supplier shall enter the details required in the vendor portal screen, and submit the invoice specifically to the concerned SJVN official's email ID (abcd@sjvn.nic.in), after submission a unique VITMS number (Reference Number) will be generated and supplier will receive an automated unique VITMS number (Reference Number) both in its registered email ID and mobile number.
- On receipt of the physical bill, concerned SJVN official shall online acknowledge the receipt of the bill. All the actions taken by the concerned officials of SJVN can be easily been tracked in the "Invoice Status Section" by supplier.
- After the final payment, vendor can download the details of the payment under check forwarding details section on the Invoice upload and track screen.

B GENERAL CONDITIONS OF CONTRACT (GCC)

1.0 Definitions

In this Contract, the following terms shall be interpreted as indicated:

- (a) **"The Contract"** means the Contract Agreement entered between the Owner and the Contractor, as recorded in the Contract Form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.
- (b) **"The Contract Price"** means the price payable to the Contractor under the Contract for the full and proper performance of its contractual obligations.
- (c) **"The Services"** means all those services necessary for the completion of work as per Technical Specifications and other such obligations of the Contractor covered under the Contract.
- (d) **"The Owner"** means the **SJVN Limited**.
- (e) **"The Contractor"** means the individual or firm supplying the material under this Contract.
- (f) **"Corrupt Practice"** means the offering, giving, receiving or soliciting of any thing of value to influence the action of a public official in the procurement process or in contract execution.
- (g) **"Fraudulent Practice"** means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Owner and includes collusive practice among Bidders (prior to or after Bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Owner of the benefits of free and open competition".

2.0 CONTRACT PERFORMANCE SECURITY

- 2.1 Within **Twenty Eight (28) days** of receipt of the notification of Contract award i.e. from the date of issue of LOA, the successful Bidder shall furnish to the Owner, an unconditional performance security for **Five percent (5%)** of the contract Price including GST with validity up to **60 days after the Guarantee/Warranty Period (Refer Clause 5.0)**.
- 2.2 The proceeds of the performance security shall be payable to the Owner as compensation for any loss resulting from the Contractor's failure to complete its obligations under the Contract.
- 2.3 The performance security shall be denominated in the currency of the Contract and shall be in the form of Bank Guarantee **(As per the SJVN format enclosed/As per the Standard Format of GeM)** issued preferably by a nationalized bank/ scheduled bank as per RBI guidelines, acceptable to the Owner or in the form of FDR/TDR or online bank transfer in SJVN account [As per bank account detail mentioned in ITB, Sr. no 7.4 above].

In case CPG is submitted by way of Bank Guarantee; while issuing the physical BGs, the Supplier's/contractor's Bank shall also send electronic message through secure SFMS to Employer's/Buyer's Beneficiary Bank whose details are provided in the ITB Clause No. 7.0(7.4) above.

- 2.4 The performance security will be discharged by the Owner and returned to the Contractor not later than sixty (60) days after expiry of guarantee/warranty period of all the material /works under the scope of the contract.
- 2.5 **In case any delay in the submission of CPG, Interest shall be charged on per day basis on the amount of CPG@SBI MCLR as on date of bid submission + 200 basis point.**

Note:- In case of last days of submission of Performance security happens to be a bank holiday, the last day of submission of CPG shall be next working day.

- 2.6 The MSE/ NSIC/Start Up registered firms are not exempted from the submission of the Contract Performance Security.

3.0 PACKING:

- 3.1 The supplier/contractor shall provide such packing to the goods as is required to prevent damage or deterioration during transit to their final destination & storage, as indicated in the contract. The packing shall be sufficient to withstand, without limitation, rough handling during transit and precipitation during transit and open storage. Packing case size and weights shall take into consideration, the remoteness of the Goods' final destination, the existing road condition and the absence of heavy handling facilities at all points in transit and project storage site.

4.0 INSURANCE

- 4.1 The goods to be supplied shall be insured for all risks by the supplier till it is delivered at O&M, stores, NJHPS, SJVN, Jhakri & completion of installation, testing, commissioning at site, Power House, NJHPS, SJVN Ltd. Jhakri & handing over the system to SJVN.

Ø The contractor to take insurance cover as per tender and Insurance policy should be shared before the dispatch of the material and material shall be only permitted for dispatch if the Insurance Policy is as per contract requirements.
The comments of the acceptance Insurance Policy shall be given by SJVN within two (02) working days after receipt of the same.

The Insurance policy towards **STORAGE CUM ERECTION (SCE)/INSTALLATION ALL RISKS COVERAGE is also to be shared for its approval before the delivery of the material.**

The comments of the acceptance Insurance Policy shall be given by SJVN within two (02) working days after receipt of the same.

- 4.2 In order to cover different risks in contracts awarded by SJVN, the following types of Insurance coverage are to be generally arranged by the contractor for the materials and works supplied by him as well as by owner, for incorporation in the 'Works':

- 4.3 **(A) TRANSIT/ MARINE INSURANCE DURING SUPPLY OF MATERIALS FOR SUPPLY/SUPPLY PORTION OF SUPPLY CUM ERECTION/TURNKEY CONTRACTS:** The Contractor shall at his expense take out and maintain in effect, or cause to be taken out and maintain in effect, during the performance of the Contract, the insurance set forth below in sums and other conditions specified:-

Sl. No.	Insurance	Amount insured	Conditions
A.	All Risk Transit/ Marine Insurance for material to be supplied.	1. 110% of FOR and inland transportation value + 2. All taxes & duties	1. Owner to be named as co insured (Insurance Policy to be taken in the joint name of SJVN & the Contractor)#. Warehouse to warehouse basis. 2. Open policy/Separate Policy. 3. All risk insurance, SRCC (Strikes, Riots, Civil Commotion) or Equivalent etc.

#Remarks: - Not required if the payment for the material is to be made after the receipt of the material at Site/O&M Stores Jhakri.
Without above insurance, No Advance payment/Payment Before Dispatch/Payment against dispatch shall be made for supply part.

Note:- No advance payment shall be made under this contract.

(B) Penalties/deductions:-

- (i) In cases where the supplier don't make SJVN as co-insurer/joint insurer as per 4.3(A) above, then payment shall be only made only after material is being delivered at site, then no penalty shall be imposed and risk shall be with contractor/supplier. However for release of any payment against supply, the contractor has to take the insurance policy as per **4.4 below**.
- (ii) If the Supplier/contractor does not take the complete Marine Transit Insurance Policy, then penalty @1% of the (110% of total contract price FOR Jhakri Including freight + 100% taxes & duties) shall be imposed.
- (iii) If the Supplier/contractor does not take the SRCC (whether part or full), then flat penalty @0.5% of the (110% of total contract price FOR Jhakri Including freight + 100% taxes & duties) shall be imposed.
- (iv) In case any short value insurance, the penalty shall be imposed on pro-rate basis based on the insurance receipt submitted by the contractor.

- 4.4 **STORAGE CUM ERECTION (SCE)/INSTALLATION ALL RISKS COVERAGE FOR SUPPLY CUM ERECTION/TURNKEY CONTRACTS:** All insurance policies pertaining to Storage Cum Erection/Installation All Risks coverage shall be taken in the joint name of SJVN and the contractor unless otherwise specifically provided. All such insurance policy shall indicate SJVN as beneficiary. The Contractor shall at his expense take out and maintain in effect, or cause to be taken out and maintain in effect, during the performance of the Contract, the insurance set forth below in sums and other conditions specified:

Sl. No.	Insurance	Amount insured	Conditions
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A.	Storage Cum Erection (SCE) / Installation All Risks Coverage for material to be supplied/installed and services to be completed.	A. 110% of FOR and inland transportation value + B. 110% of the services value. + C. All taxes & duties	1. Owner to be named as co insured (Insurance Policy to be taken in the joint name of SJVN & the Contractor). 2. All risk insurance, Riots, Strikes and Malicious Damage) or Equivalent. 3. Terrorism etc.
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Note:

- (i) For 4.4 above, the owner shall be named as co-insured {Owner to be named as co insured (Insurance Policy to be taken in the joint name of SJVN & the Contractor)} under all insurance policies taken out by the contractor except for Third party Liability and Workman's compensation / Employee's Liability Insurances.
- (ii) This insurance cover shall start immediately after the delivery of the material at Jhakri .
- (iii) SJVN as co-insurer or insurance policy in joint name of SJVN and Supplier/contractor is required; otherwise the same needs to be corrected before the release of any payment towards the supply. This insurance policy is to be taken strictly as per the contract requirements. The Insurance cover for the same should start immediately after the receipt of the material at Jhakri, otherwise no payment against the Supply shall be made until supplier/contractor takes the insurance cover as per tender.

(A) Penalty/ Deductions:-

- (i) Any penalty for the non-compliance of this Insurance Cover in full or part shall be based on the Insurance rate to be taken from M/s National Insurance Company or any other nationalized insurance company.
- (ii) In case any short value insurance, the penalty shall be imposed on pro-rate basis based on the insurance receipt submitted by the contractor.

4.5 Remarks:

- Ø For 4.3 & 4.4 above, notwithstanding the insurance requirements mentioned above, it would be the Contractor's responsibility to take adequate insurance cover as may be pertinent to protect his interest and interest of the Owner.
- Ø For 4.3 & 4.4 above, the Contractor shall follow law of the land as may be prevalent from time to time for insurance.
- Ø It will be the responsibility of the supplier/contractor to lodge, pursue and settle all claims with the insurance company in case of any damage, loss, theft, pilferage or fire during execution of the contract and purchaser shall be kept informed about it. The supplier/contractor shall replace the lost/damaged materials promptly irrespective of the settlement of the claims by the underwriters and ensure that the supply shall/ work to be completed mutually agreed time schedule. The losses, if any, in such replacement will have to be borne by the supplier/contractor. On settlement of claims, the same shall be passed on to the contractor if the contractor has made replacement.
- Ø If any of the Insurance Policy (ies) need to be extended on account of reasons not attributable to supplier/contractor, then charges for the same shall be reimbursed at actual as ascertained during final Extension of Time.
- Ø It shall be prime responsibility of the contractor/supplier to take Insurance covers as above. In case failure on part of the contractor in obtaining required insurances, the same may be purchased by SJVN

at the risk & cost of contractor if agreed and decided by SJVN. The premium for the same shall be deducted from the payment of the contractor with 10% administrative charges on premium amount.

Ø In case of the any ambiguity in the Insurance Provisions s required in the contract, the rules are per Insurance Laws as per IRDAI shall prevail.

- 4.6 Any loss or damage to the plant and equipment or person during handling transportation, storage, repairing, and all activities, and any accident or death of persons due to negligence on the part of the contractor shall be to the bidder's account for all risks. The successful Bidder shall be responsible for preferring of all claims and make good the damages or loss by way of repairs and/ or replacement of plant and equipment damaged or lost. Notwithstanding the extent of insurance cover and the amount of claim available from the underwriter, the successful bidder shall be liable to make good the full replacement/rectification of all the equipment and material and to ensure their availability as per the project requirement/ without additional financial liability to SJVN.
- 4.7 In addition to above contractor shall insure his all man and machinery etc. against any mishap / accident . Contractor shall submit the insurance policy to this effect to the EIC of the work. SJVN shall bear no responsibility and financial liability for any mishap/accident for contractor man power / machinery.

5.0 Guarantee/Warranty

- 5.1 The Complete material and services supplied under the scope of contract shall be covered under Guarantee /Warranty for a period of **24 Months** from the date of successful Installation, offline and online Testing of supplied material at actual use at site & handing over the system to SJVN Ltd at site NJHPS, SJVN Ltd. Jhakri. In case of any defect found in the in the supplied system due to poor quality of equipment and poor workmanship within Guarantee/Warranty period, the Contractor shall rectify or replace the faulty component within Guarantee/Warranty period free of cost at site, NJHPS, SJVN Ltd. Jhakri as per the notification of EIC/Copy/ scanned copy of Guarantee/Warranty Certificate issued on letter head of contractor/ supplier to be sent by post/through authorized e-mail of supplier as per LOA/GeM Contract.
- 5.2 Further, the Guarantee/Warranty clause as per **Clause 1.5** of the technical specification Annexure-A uploaded along with the bid documents, shall also be applicable.

6.0 FORCE MAJEURE

- 6.1 The firm shall not be liable for loss or damage to SJVN resulting from any delays or failure to complete the entire scope of work at Jhakri site within schedule time for all or any part of the item due to the act of God, war declared or undeclared, acts of public enemy, riots, civil commotion, invasion, insurrection, sabotage, acts of restraint of Government, federal, state or municipal action or regulation, fire, flood, hurricanes, accidents, epidemic, quarantine, restrictions, or any failure on the part of the Owner or his representative to approve or comments on drawings or other causes, contingencies or circumstances not subject to their control, whether of a similar or dissimilar nature which prevents the Contractor from completion of work. Any such cause or delays even though not existing on the date of the contract on or the date of start of reclaiming shall extend the time of performance automatically by length of delays occasioned thereby, including delay reasonably incidental to the resumption of normal reclamation work even though such case may occur after performance of firm's obligation has been delayed for the other causes.

- 6.2 If a Force Majeure situation arises, the Contractor shall promptly notify the Owner in writing of such condition and the cause thereof. Unless otherwise directed by the Owner in writing, the Contractor shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

7.0 PAYMENT TERMS

- 7.1 **Eighty percent (80%)** Payment of **Material/Supply part** including (100%) taxes and duties shall be made within 10 days after delivery of full material at O&M Store NJHPS, SJVN, Jhakri on generation of CRAC and on submission of following documents to consignee for the release of the payment:-

- i. Invoices in Triplicate.
- ii. Copy of GST No. & PAN No. with 1st bill only.
- iii. Copy Contract Performance Security with 1st bill only.
- iv. Signed copy of Integrity Pact with 1st bill only as per ATC(ITB) clause no. 18.0
- v. Copy of GR duly acknowledged at NJHPS, SJVN Ltd. Jhakri by EIC or his authorized representative or consignee for receiving of material in good condition with 1st bills.
- vi. Insurance Policy as per sr. no. 4.0 above.
- vii. Inspection Report as per clause 6.2 & 6.4 of ITB. The EIC shall submit the inspection Report.
- viii. E-way bills (as per applicable Rules).
- ix. Copy of MDCC issued by indenting department of SJVN/EIC.

- 7.2 **Balance Twenty percent (20%)** payment of the **material/Supply part** and **Hundred percent (100%)** payment of **Service part [i.e Installation, testing and commissioning charges as per scope of work at site, NJHPS, Jhakri]** shall be made within 10 days after completion of entire scope of work {as per scope of work & technical specification enclosed along with bid} and handing over the system to SJVN and on submission of following documents to consignee for the release of the payment:-

- i. Invoices in Triplicate.
- ii. Copy/scanned copy of Guarantee/Warranty Certificate as per clause no. 5.0 of GCC above issued on letter head of contractor/ supplier to be sent by post/through authorized e-mail of supplier as per LOA/ GeM Contract.
- iii. Copy of certificate issued by EIC for successful completion of the entire scope of work [i.e Supply, Installation, testing, commissioning, operation and handing over the supplied system to SJVN & training provided by the supplier as per scope of work & technical specification enclosed along with bid] and

er the contract has been completed by the supplier/contractor.

- iv. Handing over certificate by the contractor.
- v. Taking over certificate by the EIC.
- vi. Copy of two (02) sets of drawing & two (02) of O&M manual as per technical specification enclosed.
- vii. Documents as per Technical specification enclosed (if any).

7.3 In order to comply with necessary formalities under GST while making payments, computation tax, invoicing, filling of returns etc. under Notification No 10/2017, Chapter VI, 46 tax invoice' invoice for goods and services to contain following particulars namely:-

- a) Name, Address & GSTIN of the Supplier
- b) Specific Invoice Number format
- c) Name and address of recipient
- d) Address of Delivery
- e) HSN code of goods and SAC for Services
- f) Name and quantity of goods/services
- g) Value of goods
- h) Rate and amount of tax
- i) Other prescribed information Name, Address & Contact Details (Tel. no. etc.) of the Service Provider.

7.4 All the payments for the supplies and/or services (as applicable) rendered by MSEs (Micro & Small Enterprises) supplier/contractor under the contract shall be released within forty-five (45) days from the day of acceptance.

Day of acceptance means day of actual delivery of goods or the rendering of services; or where any objection is made in writing by SJVN regarding acceptance of goods or services within fifteen days from the date of delivery of goods or the rendering of services, the day on which such objection is removed by the contractor/supplier.

In case payments are not released as mentioned above, SJVN shall pay the principal amount plus compound interest with monthly rests from the date immediately following the date agreed upon @ three times of bank rates as notified by Reserve Bank of India time to time.

7.5 All the payments for the supplier and/or services (as applicable) rendered by non-MSEs (Non- Micro & Small Enterprises) supplier/ contractor under the contract shall be released within forty-five (45) days from the receipt of invoices/bills from the contractor/ supplier complete in all respects.

In case payments are not released as mentioned above, SJVN shall pay the principal amount plus simple interest from the date immediately following the date agreed upon @ 8% p.a.

7.6 TAX DEDUCTION AT SOURCE UNDER GST/IT ACT: SJVN shall be entitled to make all deduction towards taxes from the payments to be made to the contractor as may be mandatory as per rules under GST/IT ACT. However SJVN shall give a statement in respect of such deductions to the contractor.

8.0 COMPLETION SCHEDULE

8.1 **FOR SUPPLY PART:-** The basic consideration and the essence of the Contract shall be the strict adherence to the Completion Schedule. The maximum delivery period for the entire scope of supply of material part is to be completed within **120 days** from the date of issue of LOA/GeM Contract/GeM Contract Provisions.

8.2 **FOR SERVICE PART:-** The entire Services under the Scope of Work (Installation, Testing, Commissioning & Handing Over) shall commenced within 15 days from the notification of EIC or his authorized representative as per the following time schedule in matching with Annual Plant Maintenance Schedule 2026-27 of NJHPS.

A. Maximum allowable continuous shutdown period for each Generating Units towards Installation , Testing, Commissioning, Off Line Testing, on Line Testing & Handing Over shall be limited to 08 Days only.

9.0 LIQUIDATED DAMAGES:

FOR SUPPLY PART:-

9.1 If the contractor fails to complete the delivery of complete material within the period(s) specified in the Contract, the Owner shall, without prejudice to its other remedies under the Contract, deduct from the Contract Price, as Liquidated Damages, as specified here in below.

9.2 The L.D. charges for delay in delivery of entire scope of **Supply of material part [i.e 120 days]** beyond the maximum delivery period as stipulated at **clause 8.0(8.1)** above shall be @ 1/2% (Half percent) per week or part thereof for the total contract value of material part. The total amount of L.D. charges for delay under the Contract will be subject to a maximum of five percent (5%) of the total contract price of material part excluding service part.

9.3 Amount of Liquidated Damage shall be payable by the Supplier whenever demanded by the Owner and / or Owner can recover the amount of liquidated Damages (to the extent leviable at any time) from the amount payable to the Supplier available with Owner under this Contract.

9.4 Supplier's obligations and the Owner's remedies in respect of delay are solely and exclusively as stated in this Liquidated Damages clause subject to provisions of **Clause 10.0** and consequence thereof.

PENALTY CHARGES: FOR SERVICE PART

9.5 In case bidder fails to meet the continuous Shutdown requirement of 08 Days to accomplish the entire scope of work under each Generating Unit as stipulated at clause 8.0[8.2 (A)], the penalty charges shall be levied @ 5% of the **total contract price** for each Generating Unit subject to maximum 10% of the total Contract price for two Generating Units.

10.0 TERMINATION OF CONTRACT ON CONTRACTOR'S DEFAULT

10.1 The Owner, without prejudice to any other remedy for breach of Contract, by written notice of default sent to the Contractor, may terminate this Contract in whole or in part:

- a) if the Contractor fails to complete any part of all the work or all of the Goods within the period(s) specified in the Contract, or within any extension thereof granted by the Owner.
- b) if the Contractor fails to perform any other obligation(s) under the Contract.
- c) If the Contractor, in the judgment of the Owner has engaged in corrupt or fraudulent practices in competing for or in executing the Contract.

10.2 In the event the Owner terminates the Contract in whole or in part, the Owner may procure / get repaired, upon such terms and in such manner as it deems appropriate, Goods or Services similar to those undelivered / un-repaired, and the Contractor shall be liable to the Owner for any excess costs for such similar Goods or Services. However, the Contractor shall continue performance of the Contract to the extent not terminated.

11.0 TERMINATION FOR INSOLVENCY

The Owner may at any time terminate the Contract by giving written notice to the Contractor if the Contractor becomes bankrupt or otherwise insolvent. In this event, termination will be without compensation to the Contractor, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the Owner.

12.0 TERMINATION OF CONTRACT ON OWNER'S INITIATIVE

- 12.1 The Owner reserves the right to terminate the Contract either in part or in full due to reasons other than those mentioned under clause entitled "Contractor's Default" and "Outbreak of War". The Owner shall in such an event give seven (7) days notice in writing to the Contractor of his decision to do so.
- 12.2 The Contractor upon receipt of such notice shall discontinue the work on the date and to the extent specified in the notice, make all reasonable efforts to obtain cancellation of all orders and contracts to the Owner, stop all further sub-contracting or purchasing activity related to the work terminated, and assist the Owner in storage, maintenance, protection, and disposition of the works acquired under the contract by the Owner.
- 12.3 In the event of such a termination, the Contractor shall be paid equitable and reasonable compensation, as dictated by the circumstances prevalent at the time of termination.

13.0 SETTLEMENT OF DISPUTES

- 13.1 Any dispute(s) or difference(s) arising out of or in connection with the Contract shall, to the extent possible in the first instance be resolved amicably between the Contractor and the Owner's Engineer.
- 13.2 If any dispute or difference of any kind whatsoever shall arise between the Owner and the Contractor, arising

sing out of the Contract for the performance of the Works whether during the progress of the Works or after its completion or whether before or after the termination, abandonment or breach of the Contract, it shall, in the first place, be referred to and settled by the Engineer, who within a period of ten (10) days after being requested by either party to do so, shall give written notice of his decision to the Owner and the Contractor.

- 13.3 Save as hereinafter provided, such decision in respect of every matter so referred shall be final and binding upon the parties until the completion of the entire work under the Contract and shall forthwith be given effect to by the Contractor who shall comply with all such decisions, with all due diligence, whether he or the Owner requires arbitration as hereinafter provided or not.
- 13.4 If after the Engineer has given written notice of his decision to the parties, no claim to arbitration has been communicated to him by either party within ten (10) days from the receipt of such notice, the said decision shall become final and binding on the parties.
- 13.5 In the event of the Engineer failing to notify his decision within ten (10) days after being requested as aforesaid or in the event of either the Owner or the Contractor being dissatisfied with any such decision, or within ten (10) days after the expiry of the first mentioned period of ten (10) days, as the case may be, either party may require, by written notice to the other party, that the matters in dispute be referred to arbitration as hereinafter provided.

14.0 ARBITRATION (with Pvt. Party)

- 14.1 If at any time, any question, disputes or difference, whatsoever, shall arise between the purchaser and the supplier upon or in relation to or in connection with this contract, either party may forthwith give to the other, notice, in writing, of the existence of such question, dispute or differences. All disputes or differences in respect of which the decision, if any, of the Engineer has not become final or binding as aforesaid shall be settled by arbitration in the manner hereinafter provided.
- 14.2 In the event of the Contractor, that is to say a citizen and/or a permanent resident of India, a firm or a company duly registered or incorporated in India, the arbitration shall be conducted by three arbitrators, one each to be nominated by the contractor and the Owner and the third to be named by the President of Institution of Engineers, India. If either of the parties fails to appoint its arbitrator within thirty (30) days after receipt of a notice from the other party invoking the arbitration clause, the President of the Institution of Engineers, India shall have the power at the request of either of the parties, to appoint the arbitrators. A certified copy of the said President making such an appointment shall be furnished to both the parties. The arbitration shall be conducted in accordance with the provisions of the Arbitration & Conciliation Act, 1996 or any statutory modification thereof.
- 14.3 In the event of the Contractor, that is to say a foreign supplier, the arbitration shall be conducted by three arbitrators, one each to be nominated by the contractor and the Owner and the third by the President of the International Chamber of Commerce. The Arbitration shall be conducted in accordance with the rule and procedure for arbitration of the International Chamber of Commerce, Paris.. If either of the parties fails to appoint its arbitrator within sixty (60) days after receipt of a notice from the other party invoking the arbitration clause, the President of the International Chamber of commerce shall have the power at the request of either of the parties, to appoint the arbitrators. A certified copy of the said President making such an appointment shall be furnished to both the parties.

14.4 Arbitration(s) shall give reasoned award.

14.5 The decision of the majority of the arbitrators shall be final and binding upon the parties. The expenses of the arbitration shall be paid as may be determined by the arbitrators. The arbitrators may, from time to time with the consent of all the parties enlarge the time for making the award. In the event of any of the aforesaid arbitrators dying, neglecting, resigning or being unable to act for any reason, it will be lawful for the party concerned to nominate another arbitrator in place of the outgoing arbitrator.

14.6 The arbitrator shall have full powers to review and/or revise any decision, opinion, directions certification or valuation of the Engineer in consonance with the contract.

14.7 The arbitration proceedings shall be held at such place and time in India as the Arbitrator(s) may determine. The decision of the Arbitrator(s) shall be final and binding upon the parties hereto and the expenses of the Arbitration shall be paid as may be determined by the Arbitrators.

14.8 Performance under the contract shall, reasonably possible, continue during the arbitration procedures and payment due to the supplier by the purchaser shall not be withheld unless they are subject matter of the Arbitration proceedings.

15.0 ARBITRATION (WITH CPSEs)

15.1 *Notwithstanding the above, in case the contractor is a Central Public Sector Enterprise (CPSE)/Government Organization or Department then the dispute or difference (other than those related to taxation matters) between the Employer and the Contractor shall be settled through Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD) as mentioned in DPE OM No. 4(1)/2013-DPE(GM)/FTS-1835 dated 22.05.2018 and DPE OM No. DPE-GM-05/0003/2019-FTS-10937 dated 20/02/2020. The decision through AMRCD will be final and binding on all the concerned.*

16.0 APPLICABLE LAW

16.1 *The Contract shall be governed by and interpreted in accordance with the law in force in India. The courts of Rampur Bushahar/ Shimla shall have exclusive jurisdiction in all matters arising under the Contract.*

17.0 NOTICES

- ▶ Any notice given by one party to the other pursuant to this Contract shall be sent to the other party in writing or by cable telex or facsimile and confirmed in writing to the other party's address specified in NIT/NIQ.
- ▶ A notice shall be effective when delivered or on the notice's effective date, whichever is later.

18.0 LIMITATION OF LIABILITY

Except in cases of criminal negligence or willful misconduct,

- a) the Contractor shall not be liable to the Employer, whether in contract, tort, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, provided that this exclusion shall not apply to any obligation of the Contractor to pay liquidated damages to the Employer and
- b) the aggregate liability of the Contractor to the Employer, whether under the Contract, in tort or otherwise, shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment, or to any obligation of the Contractor to indemnify the Employer with respect to patent infringement.

19.0 FINAL ACCEPTANCE /TAKING OVER

- (a) The supplier/Contractor shall be responsible for the quality and performance of all equipment and materials and for their compliance with the specifications until Final acceptance / Taking Over and the fulfillment of Defect Liability provisions of the contract.
- (b) Upon successful completion of all works as per scope by the supplier/Contractor, the Engineer shall issue to the Supplier/Contractor a Taking Over Certificate as a proof of the final acceptance of the equipment/material. Such certificate shall not unreasonably be withheld nor will the Engineer delay the issuance thereof on account of minor omissions or defects which do not affect the operation and /or cause any serious risk to the equipment's. Such certificate shall not relieve the Contractor of any of his obligations which otherwise survive, by the terms and conditions of the contract after issuance of such certificate.

20.0 ENGINEER IN CHARGE (EIC):- HOD(Power House Elect. Maintc. Deptt.), NJHPS, SJVN Jhakri, (who shall be the EIC of this Contract).

21.0 CONSIGNEE

The Goods under this Contract shall be dispatched to the Consignee at the following address:-

**HOD(MMG Deptt.)
Nathpa Jhakri Hydro Power Station,
SJVN Ltd., Jhakri, Distt. Shimla, (HP)
Pin-172201 (INDIA)**
Phone No. 0091-1782-275041; Fax No. 0091-1782-275827

E-mail ID: mmg.njhps@sjvn.nic.in

Remarks: - All post award communication regarding delivery of the material, release of EMD, payment & CPG etc are to be carried out with consignee at above contact information.

6. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or

notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---